

23AVCV00623 23AVCV00623

County: los-angeles

Division: Civil Law and Motion

Department: A15

Hearing date: 2026-09-24

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Case Number: 23AVCV00623 Hearing Date: September 24, 2026 Dept: A15

SMITH v. AMERICAN HONDA MOTOR CO., INC.

Motion

to Quash Notice to Appear and Produce at Trial

Defendant American Honda Motor Co., Inc.'s motion to quash plaintiffs' notice to appear and produce at trial is set for hearing on September 24, 2026, at 8:30 a.m. in Department A15. The Court has considered the motion, the declaration of Reshma A. Bajaj and attached notice, plaintiffs Almira Smith and Stephen Smith's opposition, the declaration of David Lunn and its exhibits, and the file in this matter. The Court issues the following tentative ruling.

DISPOSITION

1. The Court exercises

its discretion to consider plaintiffs' late opposition.

2. The motion is GRANTED. Plaintiffs' August 28, 2026

notice to appear and produce at trial is quashed, without prejudice to service of a new, statutorily compliant notice or subpoena for the continued trial.

3. Plaintiffs'

requests to compel production through the present notice, to modify that notice, and to require defendant to disclose within five days the former titles and departure dates of Jeff Chang, Steven Bailey, and Michael V. Tyrrell are DENIED.

4. Defendant's request

for \$1,500 in monetary sanctions against Strategic Legal Practices, APC, and plaintiffs' request for \$2,537.50 in monetary sanctions against defendant and its counsel are DENIED.

REASONS

A. Procedural history and factual background

This warranty action concerns plaintiffs' 2019 Honda CR-V. Plaintiffs allege that defendant failed to repurchase or replace the vehicle after unsuccessful repair attempts. (Lunn Decl., ¶¶ 16-17.) On August 28, 2026, plaintiffs served a notice directing Michelle Jongkind, Jeff Chang, Steven Bailey, and Michael V. Tyrrell to appear at trial and each to produce specified records. The demands include the vehicle's electronic eVRM record, divided into 14 identified sections, and five types of documents for each applicable safety or noncompliance recall. (Bajaj Decl., ¶ 3 & Ex. A, pp. 2-4.)

The notice offers each witness an alternative: provide the requested records and a declaration stating, among other things, that the witness is defendant's authorized custodian of records. That alternative must be completed at least five court days before trial. (Bajaj Decl., Ex. A, pp. 4-5.) On September 9, 2026, the Court continued trial from September 18, 2026, to January 29, 2027. (Minute Order, Sept. 9, 2026, p. 1.)

Plaintiffs acknowledge that their September 21 opposition is late and attribute the delay to counsel's calendaring error. (Lunn Decl., ¶¶ 5-10.) The Court considers the opposition under California Rules of Court, rule 3.1300(d).

B. Governing standards

Code of Civil Procedure section 1987, subdivision (b), permits service of a written attendance notice on counsel in place of a subpoena for a party, a person for whose immediate benefit the action is prosecuted or defended, or an officer, director, or managing agent of such a party or person. The notice must state the time and place of attendance. A production notice must also identify the exact materials sought and state that the party or person has them in that party's or person's possession or control. (Code Civ. Proc., § 1987, subds. (b), (c).)

A party may move to quash, and the Court may quash the process entirely, modify it, or direct compliance on appropriate terms. (Code Civ. Proc., § 1987.1, subds. (a), (b)(1).) Defendant must establish a basis for the relief it requests. Here, the notice itself establishes the defects material to the disposition.

C. The present notice does not satisfy the statutory requirements

The notice requires the four individuals to appear “at the time of trial” but supplies no calendar date or time. (Bajaj Decl., Ex. A, p. 2.) Plaintiffs emphasize that defendant knew the former trial date and recited it in the motion. (Opposition, p. 12.) That knowledge does not supply the omitted attendance information in the process directed to these witnesses. The September 9 continuance is not itself a ground to invalidate an otherwise proper notice. The defect is the notice’s failure to specify when attendance is required.

The production requirement presents an additional defect. The notice directs each named individual to produce the entire set of records, but it does not state that any of those individuals has the records in his or her possession or control. (Bajaj Decl., Ex. A, pp. 2-5.) Describing records as stored in defendant’s electronic system identifies their asserted corporate source. It does not state that each individual commanded to produce them possesses or controls them. Paragraph 3(d), describing what a future custodian declaration must say, does not supply that missing assertion in the notice itself.

The optional declaration procedure does not cure these defects. It requires a witness to certify that the witness is defendant’s duly authorized custodian and to authenticate records. (Bajaj Decl., Ex. A, pp. 4-5.) An option to provide such a declaration does not establish that a named person has that authority or the requested records. Nor does an offer to excuse attendance after production establish an otherwise missing statutory basis to compel attendance. The cited business records provisions do not dispense with the requirements of Code of Civil Procedure section 1987.

D. Modification and the remaining requests

Plaintiffs correctly identify modification as an available alternative. Correcting the date alone, however, would leave the

production demands directed to four individuals without the required statement concerning their possession or control. Plaintiffs' proposed corporate production order would materially recast those individual demands. Trial is now more than four months away, and plaintiffs state that they intend to serve a renewed notice for January 29, 2027, in any event. (Opposition, p. 13.) Under these circumstances, quashing the present notice without prejudice permits plaintiffs to identify the proper recipient and serve clear, compliant process without foreclosing access to trial evidence.

The Court does not resolve the disputed employment and managing agent issues. Bajaj states that three witnesses no longer work for defendant and that Jongkind is not an officer, director, or managing agent. Plaintiffs challenge the foundation and submit a March 2026 publication identifying Bailey as a vice president and a May 2026 agency letter addressed to Jongkind. (Bajaj Decl., ¶¶ 1, 4-5; Lunn Decl., ¶¶ 25-26 & Exs. A-B.) Those disputes need not be resolved to decide whether the present notice contains the information the statute requires. The Court makes no categorical finding that any witness is immune from proper trial process.

Nor does the Court accept defendant's suggestion that every trial production demand served after the discovery cutoff is improper. A trial subpoena may obtain known documents for use as evidence without constituting further discovery. (*Boal v. Price Waterhouse & Co.* (1985) 165 Cal.App.3d 806, 810.) Here, the eVRM demand identifies a single vehicle and specified record sections. The Court does not conclude that the entire demand is inherently overbroad. Because the notice is quashed on other grounds, the Court does not reach the remaining category-specific objections or decide the scope of any renewed demand.

Plaintiffs also seek an order requiring defendant to disclose the titles and departure dates of three witnesses within five days. (Opposition, p. 14.) That information is not among the materials demanded by the challenged notice. Plaintiffs have not established a basis on this motion to compel those additional responses as a condition of relief. Their requests for that disclosure and for immediate production under the present notice are therefore denied.

E. Monetary sanctions

Code of Civil Procedure section 1987.2, subdivision

(a), permits a discretionary award of reasonable expenses incurred where the motion was made or opposed in bad faith or without substantial justification, or a requirement of the process was oppressive. Success on the motion alone does not establish one of those grounds.

Neither side has made the required showing. Defendant identified actual defects in the notice. Plaintiffs nevertheless had a substantially justified interest in obtaining vehicle-specific trial records and a reasonable basis to request modification rather than complete quashing. The defects do not establish that the notice was oppressive, and the record does not demonstrate bad faith by either side. Defendant's characterization of the requests as an expeditionary search does not establish oppression where the notice identifies one vehicle and specified record types, and the motion supplies no concrete showing of the burden of obtaining those records. (Motion, pp. 6-7; Bajaj Decl., ¶¶ 6-7.)

Defendant's \$1,500 request also includes three to four anticipated hours for an ex parte application to advance the hearing before the former trial date. (Bajaj Decl., ¶ 7.) That estimate does not establish that the expenses were incurred or remain necessary after the continuance. Because neither side establishes entitlement to sanctions, the Court need not determine the reasonable amount of either request.

To submit without oral argument, all parties must follow the Department's "Submitting on a Tentative Ruling" instructions. Only one joint email may be sent. Do not telephone the courtroom. If the parties do not unanimously agree to submit, any party may appear at the scheduled hearing without advance notice.